

THE UNIVERSAL HOUSE OF JUSTICE

1999-04-15

you have already been informed, through our email letter of 24 march 1999, of the disturbing news of the prison sentences received by four bahá'ís in íl fahán, dr. Sina hakimian, mr. farzad khajeh Sharifabadi, mr. h abibullah ferdosian Najafabadi and mr. ziaullah mirzapanah. The condemned men did not receive a written copy of the court verdict giving details of their alleged crimes and their sentences, this information being conveyed to them orally. A transcript of the text of the verdict, number 2/791/77, has now been received, and a provisional translation of it is enclosed for your reference.

The four bahá'ís were convicted in connection with their participation in the activities of the institute for higher bahá'í Studies, which is a similar kind of organization to bihe, although the latter focuses mainly on academic subjects, whereas the institute for higher bahá'í Studies is essentially concerned with the study of matters related directly to the faith. you will recall that the many teachers, administrators and office workers of bihe, who were arrested all over iran in the raids on more than 530 bahá'í homes in the fall of 1998, were all released some time ago, with the exception of the four in íl fahán who have now been sentenced.

it is significant to note that the verdict is based on an article of the criminal law of iran pertaining to the security of the country, although it has no relevance to the charges mentioned in the text of the court report. The membership of the four men in the institute for higher bahá'í Studies is cited as their major crime. The institute is referred to as "secret," and its crime was to attract youth to undertake study of their own faith, an activity branded by the text of the verdict as "teaching against islám and the regime of the islamic republic." bahá'í studies are, of course, not only not against islám, but they do not relate in any way whatsoever to the politics of the islamic republic. The bahá'í community in iran has the right to study the tenets of its faith, which is universal and all-embracing, acknowledging the

validity of i slám and of all the revealed religions of the past.297 .1

297 .2

297 .3

1996–2000 • T h e f o u r Y e a r P l a n

665dr. hakimán was sentenced to ten years' imprisonment, and the only offenses that the court verdict specifies are that he was "one of the active members of the [bahá'í] sect" and was "responsible for the formation of classes for bahá'í Studies." mr. Sharifabadi was sentenced to seven years, and the verdict states that he was "another active member of the misled bahá'í sect, Secretary of the institute for [higher] bahá'í Studies, affiliated with the house of justice of the bahá'ís and israel" and that he was "also in charge of the educational books of the bahá'ís." The verdict states that mr. Najafabadi (also seven years), was a "follower of the bahá'í ideology, member of the illegal institute for [higher bahá'í] Studies" and "administrator, supporter and distributor of books amongst the members and students affiliated to the misled [bahá'í] sect." The verdict finds mr. mirzapanah, who was given a three-year sentence, to have been "the intermediary between øihrán and i | fahán and the institute for [higher] bahá'í Studies, and [engaged in] activity against the regime of the i slamic r epublic."

Not only are the astonishing sentences by the court wholly unjustified

and beyond all reason, but its verdict also has nothing to do with the article of the penal code which it cites in justification of its decisions. The text of

this article is:

Article 498—Anyone, of whatever belief, who forms or organizes an association, group or branch of a group with two or more people, under any name or title, in or outside the country, whose aim is the disruption of the security of the country, shall be sentenced to be-

tween two and ten years' imprisonment, provided that he does not

fall into the category of "muřárib" [one who wages war against god].

it is clear that this article has no relationship to individuals engaged in teaching the tenets of their peace-loving f aith to its young followers. . . .

Department of tHe secretariat297 .4

297 .5

297 .5a

m e S a g e S f r o m T h e u n i v e r S a l h o u S e o f j u S T i c e

666298

Postponement of Formation of

National Spiritual Assembly of Macedonia

[signed: The Universal House of Justice]